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Case Number: 26STCV07081 Hearing Date: July 1, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

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LORI CIRAOLLO-ARNOLD, an individual; NICHOLAS ARNOLD,
an individual; and JOSEPH ARNOLD CIRAOLLO, an individual,

Plaintiffs,

vs.

5807 TOPANGA LLC; FPI MANAGEMENT, INC.; and DOES 1 through 50, inclusive,

Defendants.

Case No.:

26STCV07081

Hearing Date:

July 1, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE] ORDER

RE:

DEFENDANT FPI MANAGEMENT, INC.'S DEMURRER AND MOTION TO STRIKE THE COMPLAINT

Background

On March 4, 2026, Plaintiffs

Lori Ciiraoalo-Arnold, Nicholas Arnold, and Joseph Arnold Ciraoalo (collectively, "Plaintiffs") filed this action against Defendants 5807 Topanga LLC, FPI Management, Inc., and DOES 1 through 50 (collectively, "Defendants"), inclusive for: (1) Beach of the Implied Warranty of Habitability; (2) Negligence; (3) Nuisance; and (4) Tenant Anti-Harassment Ordinance Violations [Los Angeles Municipal Code §§ 151.33 et seq.].

On May 29, 2026,

Defendant 5807 Topanga LLC ("5807TL" or "Landlord Defendant") filed an Answer to the Complaint.

On June 3, 2026,

Defendant FPI Management, Inc. ("FPI" or "Agent Defendant") filed the instant Demurrer and Motion to Strike the Complaint. On June 17, 2026, Plaintiffs filed an Opposition. On June 24, 2026, FPI filed a Reply.

Request for

Judicial Notice

The Court GRANTS FPI's request

for judicial notice of the Lease Agreement [Exhibit A] pursuant to Evidence Code Section 452(h). (See *Scott v. JPMorgan Chase Bank, N.A.* (2013)

214 Cal.App.4th 743, 754 ["Where, as here, judicial notice is requested of a legally operative document—like a contract—the court may take notice not only of the fact of the document and its recording or publication, but also facts that clearly derive from its legal effect. [Citation.] Moreover, whether the fact derives from the legal effect of a document or from a statement within the document, the fact may be judicially noticed where, as here, the fact is not reasonably subject to dispute."].)

Discussion

A. Legal Standard re: Demurrer

A demurrer can be used

only to challenge defects that appear on the face of the pleading under attack

or from matters outside the pleading that are judicially noticeable. ((Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the

complaint need only allege facts sufficient to state a cause of action; each

evidentiary fact that might eventually form part of the plaintiff's proof need

not be alleged." ((C.A. v. William S. Hart Union High

School Dist. (2012) 53 Cal.4th

861, 872.) For the purpose of testing the sufficiency of the cause

of action, the demurrer admits the truth of all material facts properly

pleaded. ((Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A

demurrer "does not admit contentions, deductions or conclusions of fact or

law." ((Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

Leave to amend must be allowed where there is a reasonable possibility of

successful amendment. ((Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The

burden is on the complainant to show the Court that a pleading can be amended

successfully. (Id.)

a. Meet and Confer

Prior to filing a demurrer and motion to

strike, the demurring/moving party is required to meet and confer in person, by

telephone, or by videoconference with the party who filed the pleading for the

purposes of determining whether an agreement can be reached through a filing of

an amended pleading that would resolve the objections to be raised in the

demurrer and motion to strike. ((Code Civ. Proc., §

430.41); Code Civ. Proc., § 435.5.)

Here, FPI's counsel of record, Mustafa R.

Karim, attests to meeting and conferring with Plaintiffs' counsel, Vick V.

Petrosian via telephone call on June 1, 2026. (Karim Decl., ¶2.) Mr. Karim

requested an extension to file a responsive pleading in order to meet and

confer further, which Mr. Petrosian denied. (Id., ¶3.) Thus, FPI has

satisfied its meet and confer requirement prior to filing the present demurrer

and motion to strike.

b. General Allegations of the Complaint

In the Complaint, Plaintiffs allege, inter alia, that on or about September 1, 2010, Plaintiff Lori Ciralo-Arnold entered into a Lease Agreement with Defendants for the real property located at 5807 Topanga Canyon Blvd., Apt. I-106, Woodland Hills, CA 91367 (the "Property"). (Compl., ¶¶5, 18.) Plaintiffs Nicholas Arnold and Joseph Arnold Ciralo were third-party beneficiaries to the Lease Agreement. (Id.) The Property was owned, maintained, operated, leased, rented, managed, and/or supervised by Defendants. (Id., ¶12.)

c. Breach of the Implied Warranty of Habitability (1st C/A)

FPI contends that the first cause of action for breach of the implied warranty of habitability fails because FPI is not a party to the Lease Agreement.

"The elements of such an affirmative claim are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages." ((Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297.) A cause of action for breach of the implied warranty of habitability is a contractual based action. ((See Fairchild v. Park (2001) 90 Cal.App.4th 919, 924–925 ["An action by a tenant alleging a breach of the warranty of habitability is an action on the contract that authorizes the recovery of fees pursuant to an attorney fee provision in the rental agreement."])

The Complaint alleges, inter alia, that Defendants had a duty to act reasonably to provide Plaintiffs with a habitable home, and comply with all statutory requirements and governing the maintenance and hire of rental housing units. (Compl., ¶¶13, 19-20.) At all relevant times, the following conditions existed at the Property, which Defendants failed to remedy despite repeated requests for repairs: cockroach and insect infestations, and lack of insect control; rodent infestations, feces, and lack of rodent control; bites from cockroaches and other insects;

water leaks and intrusion; water damage; excessive moisture; toxic mold; damaged and deteriorated carpeting/flooring; inoperable stoves or ovens, heating, and air conditioning; broke tiles or flooring; damaged bathroom fixtures; and building code and health & safety code violations. (Id., ¶¶14, 21-24.) Plaintiffs suffered damages as a result of Defendants' conduct, acts and omissions in sums to be determined according to proof. (Id., ¶25.)

The Lease Agreement

lists Landlord Defendant as "Owner," FPI as "Agent," and Plaintiffs as "Residents." (Def. RJN, Ex. A at p. 1.) The Lease Agreement further states that: "Owner hereby leases to Residents the premises at 5807 TOPANGA BLVD. #1106, WOODLAND HILLS, CA 91367 (the "Leased Premises), located within The Villas at Woodland Hills (the "Residential Community"), for use exclusively as a private residence, and not for any other purpose, except as specifically mandated by applicable law." (Id.) The Lease Agreement states that: "The following person or entity ("Agent") is authorized to collect rents, manage, and maintain the Leased Premises and is authorized to act on behalf of Owner for the purpose of receiving service of process, notices, and demands: FPI Management, Inc.,...." (Id. at pp. 1-2.) The Lease Agreement is signed by Plaintiffs and FPI on behalf of and as a designated agent for, Landlord Defendant. (Id. at p. 15.) The Lease Agreement makes it clear on its face that Landlord Defendant is the owner of the Property and is leasing the Property to Plaintiffs. FPI is explicitly listed as the Agent for the Property; FPI did not sign the Lease Agreement in its own capacity, i.e., as a principal or party to the agreement. The Lease Agreement expressly states that FPI was signing the agreement on "behalf of, and as a designated agent for, Owner." (Def. RJN, Ex. A at p. 15.) This case is distinguishable from *Hacker Pipe & Supply Co. v. Chapman Valve Mfg. Co.* (1936) 17 Cal.App.2d 265, where the Agent entered into its own contract with the Plaintiff, albeit it was in connection with a contract with the principal, and specifically breached the contract they entered into with the Plaintiff.

"If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence." (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1444 [superseded by statute on unrelated grounds.] Allegations "which are contradicted by the express terms of an exhibit incorporated into the complaint" are disregarded by the Court. (*Breneric Associates v. City of Del Mar* (1998) 69 Cal.App.4th 166, 180.) The Complaint is devoid of any allegations that FPI entered into the Lease

Agreement and/or any other agreement with Plaintiffs, which would make FPI personally liable for breach of the implied warranty of habitability as it pertains to the Property. The language in the Lease Agreement that states that “[t]he following person or entity (“Agent”) is authorized to collect rents, manage, and maintain the Leased Premises and is authorized to act on behalf of Owner for the purpose of receiving service of process, notices, and demands: FPI Management, Inc.,...” (Breneric Associates v. City of Del Mar, supra, at pages 1-2) does not make FPI liable for breach of the implied warranty of habitability; it merely indicates that FPI is allowed to maintain and manage the Property on behalf of Landlord Defendant but does not shift liability to FPI. Plaintiffs do not cite to any legal authority supporting such contention.

Accordingly, the demurrer to first cause of action for breach of the implied warranty of habitability is SUSTAINED without leave to amend.

d. Nuisance (3rd C/A)

Next, FPI asserts that the third cause of action for nuisance is duplicative of the second cause of action for negligence.

In order to state a prima facie claim for nuisance, “[f]irst, the plaintiff must prove an interference with his use and enjoyment of his property. [Citation.] Second, ‘the invasion of the plaintiff’s interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer “substantial actual damage.” ’ [Citation.] Third, ‘ “[t]he interference with the protected interest must not only be substantial, but it must also be unreasonable” [citation], i.e., it must be “of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.” ’ ” (MMendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 262-263.) “The requirements of substantial damage and unreasonableness are not inconsequential.” ((Id. at p. 263, italics in original.) Descriptions of the standard are numerous and nonspecific: as “significant harm”, “harm of importance”, a “real and appreciable invasion of the plaintiff’s interests,” “definitely offensive, seriously annoying or intolerable,” conduct by which “normal persons in that locality would ... be substantially annoyed or disturbed”, and so on. (San Diego Gas & Electric Co. v. Superior Court (1996) 13

Cal.4th 893, 938, citations omitted.)

“[B]ecause of the broad definition of nuisance, whether a cause of action is viable depends on the facts of each case.” (El Escorial Owners’ Assn. v. DLC Plastering, Inc. (2007) 154 Cal.App.4th 1337, 1348; see also Van Zyl v. Spiegelberg (1969) 2 Cal.App.3d 367, 372.) “Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim.” (Id. at 1349.)

With respect to the negligence claim, the Complaint alleges, inter alia, that Defendants owed Plaintiffs a duty to exercise reasonable care in their ownership, management and control of the Property including but not limited to, the duty to provide safe and habitable housing, and comply with applicable state and municipal laws governing housing standards and Plaintiffs’ rights as tenants. (Compl., ¶¶27-28.) Defendants breached that duty by failing to provide a habitable Property, failing to repair the dangerous and harmful conditions on the Property, failing to protect Plaintiffs’ property from physical damages, and failing to protect Plaintiffs’ quiet enjoyment of the Property. (Id., ¶29.) As a direct and proximate result of Defendants’ breach, Plaintiffs suffered and continue to suffer serious emotional and physical injury and emotion distress. (Id., ¶¶30-31.)

As to the nuisance claim, the Complaint alleges, inter alia, that by acting or failing to act, Defendants created and/or permitted dangerous and harmful conditions on the Property, which interfered with Plaintiffs’ use and enjoyment of the Property. (Compl., ¶34.) Defendants failed to abate these conditions despite notice and a reasonable opportunity to abate them. (Id.) Plaintiffs did not consent to Defendants’ conduct. (Id., ¶35.) As a direct and proximate result of Defendants’ conduct, Plaintiffs suffered property damages, economic loss, serious emotional and physical injury and emotional distress. (Id., ¶¶37-38.)

Taking the allegations set forth above as true, both the negligence and nuisance claims rely on the same facts, i.e., Defendants’ lack of care in maintaining the Property, permitting materially defective and harmful conditions on the Property, and Defendants’ lack of care causing Plaintiffs’ damages. However, a party may plead inconsistent facts or theories in the alternative. (Crowley v. Kattelman

(1994) 8 Cal. 4th 666, 691; see also Adams v.

Paul (1995) 11 Cal. 4th 583, 593; Third Eye

Blind, Inc. v. Near North Entertainment Ins. Services, LLC (2005) 127 Cal.App.4th 1311, 1323.)

"Inconsistencies between alternative counts cannot be attacked by demurrer, since each count stands on its own allegations, unaffected by those contained in other counts." (Penziner v. West American Finance Co. (1933) 133 Cal.App. 578, 582.) There is a possibility that Plaintiffs could properly plead a nuisance claim as alternative theory of liability against FPI.

Accordingly, the

demurrer to the third cause of action for nuisance is SUSTAINED with leave to amend.

B. Legal Standard re: Motion to Strike

A court may strike any

"irrelevant, false, or improper matter inserted in any pleading" or any part of a pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ.

Proc., § 436.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

Here, FPI moves to

strike paragraph 16 of the Complaint and paragraph 1 through 2 at the Prayer for Relief. These sections seek punitive damages. Nevertheless, in accordance with the Demurrer ruling, the Court finds that the motion to strike is rendered moot.

Conclusion

Based on the foregoing, the

Court SUSTAINS FPI's Demurrer to the Complaint with 30 days leave to amend as to the third cause of action and without leave to amend as to the first action.

The Court also DENIES AS

MOOT FPI's Motion to Strike the Complaint.

FPI is ordered to

provide notice of this ruling.

DATED: July 1, 2026

Hon. Teresa A.

Beaudet

Judge, Los

Angeles Superior Court